5.

CASE #	CASE NAME	HEARING NAME
CVRI2503428	TARVER VS GENERAL MOTORS LLC	MOTION FOR ATTORNEYS FEES

Tentative Ruling:

Moving party: Plaintiffs Leon Tarver and Earintine McClenton
Responding party: Defendant General Motors, LLC

This is a lemon law case. On November 06, 2023, Plaintiffs Leon Tarver and Earintine McClenton ("Plaintiffs") purchased a New 2023 Cadillac XT5 ("Subject Vehicle") which was manufactured or distributed by Defendant General Motors LLC ("Defendant" or "GM"). Plaintiffs allege that the Subject Vehicle was delivered with, or developed, defects and nonconformities during the warranty period. Plaintiffs assert that they delivered the Subject Vehicle to authorized repair facilities, including Defendant Dutton Motor Company ("Dutton"). However, Defendants were unable to repair the Subject Vehicle. GM failed to repurchase the Vehicle in violation of the Song Beverly Consumer Warranties Act ("Song Beverly Act").

On June 19, 2205, Plaintiffs filed the Complaint. The Complaint asserts four causes of action for: (1) Violations of the Song Beverly Act--Breach of Express Warranty against GM; and (2) Violations of the Song Beverly Act--Breach of Implied Warranty against GM; (3) Violation of the Song Beverly Act Section 1793.2(b) against GM; and (4) Violations of the Civil Code Section 1796.5 against Dutton.

Plaintiffs now move for attorney's fees in the amount of $16,460, plus a multiplier of $4,938.00 and costs totaling $626.02. Plaintiffs argue that they are the prevailing party pursuant to a settlement agreement. Plaintiffs argue that the hours are reasonable. Plaintiffs argue that the rates requested are reasonable based on the U.S. Consumer Law Attorney Fees Survey and Laffey Matrix and may not be based on the complexity of the case or the amount of damages. Plaintiffs request a .3 multiplier based on contingency risk. Plaintiffs argue that the costs were reasonably incurred.

Defendant argues that the hours and rates are unreasonable for a simple lemon law case that settled after six months. Defendant argues that the fees for the anticipated hours are speculative and should be stricken. Defendant argues that a blended rate of $300/hour should apply to all reasonable hours. Defendant argues that several billing entries should be reduced or stricken as duplicative or unnecessary. Defendant argues that a multiplier is unwarranted.

In their Reply, Plaintiffs argue that the rate requested by Defendant is not the current rates generally awarded in Riverside and San Bernardino. Plaintiffs argue that rates are higher based on contingency risk. Plaintiffs argue that Defendant failed to address specific billing items in its Memorandum and may not do so via declaration.

Plaintiff argues that Defendant failed to meet its burden of showing any fees were unreasonable.

Analysis

<u>Motion for Attorneys' Fees</u>:

Attorneys' fees may be awarded to a prevailing party as costs when authorized by contract, statute or law. (CCP § 1033.5(a)(10).) The Song Beverly Act provides, "[i]f the buyer prevails in an action under [the Song-Beverly Act], the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees, based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." (Civil Code §1794(d).) The trial court must make an initial determination of the actual time expended; and then to ascertain whether under all the circumstances of the case, including the complexity of the case, procedural demands, skill exhibited, and results achieved, the amount of actual time expended and the monetary charge being made for the time expended are reasonable. (*Goglin v. BMW of North America* (2016) 4 Cal. App. 5th 463, 470.) If the time expended or monetary charge is not reasonable, the court should reduce the amount. (*Ibid*.)

On January 8, 2026, following mediation, Defendant served a Settlement Release Agreement ("Settlement") to Plaintiff whereby the matter settled for $61,000. (Decl. of Rodriguez, ¶ 7; Decl. of Urner, ¶ 2; Ex. A.) The Settlement provides that Plaintiffs shall retain the right to petition the Court for an award of reasonably and actually incurred attorney fees and cost recoverable pursuant to Civil Code § 1794(1). (Id., ¶ 2.) The fees are to be calculated as if Plaintiffs were found to have prevailed in the matter. (Id.) Defendant does not dispute that Plaintiffs are the prevailing party entitled to fees. Instead, Defendant argues that the fee request is excessive and unreasonable.

<u>Lodestar</u>:

The lodestar method is used to calculate fees under section 1794(d). (*Doppes v. Bentley Motors, Inc.* (2009) 174 Cal. App. 4th 967, 997.) The lodestar amount is based on the time spent and reasonable hourly rate. (Id at 998.) The prevailing buyer has the burden of showing the fees incurred were allowable and reasonably necessary to the conduct of the litigation. (*Goglin, supra*, 4 Cal. App. 5th at 470.) Verified billing records constitute prima facie evidence that the fees were reasonable. (*Hadley v. Krepel* (1985) 167 Cal. App. 3d 677, 682.) Once the prevailing party has made a prima facie showing that its fee request was fair and reasonable, the burden of proof is on the opposing party to show by admissible evidence that the fees requested were unreasonable, either by the number of hours or the hourly rate or both. (*Maughan v. Google Technology* (2006) 143 Cal. App. 4th 1242, 1261.)

Plaintiffs claim a lodestar total of $16,460.00 based on 41.7 hours.

Billing Rates:

The reasonable hourly rate is that prevailing in the community for similar work. (*PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1095.) The experienced trial judge is the best judge of the value of professional services rendered in his or her court and may make his or her own determination of the value of the services contrary to, or without the necessity for, expert testimony. (*Id.* at 1096.) In determining the value of the legal service, courts consider several factors, including, "the nature of the litigation, its difficulty, the amount involved, the skill required in its handling, the skill employed, the attention given, the success or failure, and other circumstances in the case." (*PLCM Group, Inc., supra,* 22 Cal. 4th at 1096.)

In support of their fee request, Plaintiffs produced the United States Consumer Law Attorney Fee Survey. (Decl. of Acosta, Ex. C.) Based on the rates listed in the Survey, the rates appear somewhat high. For example, the Survey lists the median rate for a consumer law attorney with six to ten years of experience at $307/hour and the rate for an attorney with one to three years of experience at $286/hour. However, these rates should be adjusted higher to account for inflation since 2018. Thus, the reasonable rates should be adjusted as follows:

Name	Years of experience	Billed rate	Reduced rate	No. of hours	Total fee with reduction
Christopher Urner (CU)	9	$525	$500	8.2	$4,100
Jorge Acosta (JA)	2	$450	$400	18.9	$7,560
Mary Zazueta (paralegal)	Unknown	$250	$200	14.6	$2,920
Total:				41.7	**$14,580**

Hours Incurred:

Plaintiff claims that counsel billed 41.7 hours on this case. Counsel produced extensive billing records showing the time for each task. Generally, billing records are given a presumption of credibility. (*Horsford v. Board of Trustees of California State University* (2005) 132 Cal.App.4th 359, 396.) "In challenging attorney fees as excessive because too many hours of work are claimed, it is the burden of the challenging party to point to the specific items challenged, with a sufficient argument and citations to the evidence. General arguments that fees claimed are excessive, duplicative, or unrelated do not suffice. Failure to raise specific challenges in the trial court forfeits the claim on appeal." (*Premier Medical Management Systems, Inc. v. California Ins. Guarantee Assn.* (2008) 163 Cal.App.4th 550, 564.)

Attached to the Declaration of Marissa Rodriguez is a copy of Plaintiffs' counsel's billing records with several items highlighted to indicate examples of excessive billing and overcharges. (Id at ¶ 17, Ex. A.) Defendant does not explain how each item is improper. Having reviewed the highlighted charges, it is not clear that any are clearly excessive or improperly duplicative. Defendant argues that the fees are excessive because counsel used templates that required only slight fact-specific modifications. Based on the Court's experience with lemon law cases, this assertion is likely accurate. However, the use of templates is reflected in the hours billed. For example, counsel incurred .3 paralegal hours and .5 attorney hours in drafting, reviewing and revising the Complaint. (Id.) Presumably, drafting a complaint from scratch would have taken considerably longer. Overall, Defendant has not established that any of the listed hours were unnecessary or duplicative. Accordingly, the **adjusted lodestar total is $14,580.00.**

Multiplier:

Plaintiff requests .3 multiplier. The court then has the power and the duty to enhance, or to reduce, the lodestar through the use of multipliers, by taking into consideration factors such as the novelty and complexity of the issues, the skill and expertise of counsel, the extent that the litigation precluded other employment and the contingent nature (or risk) of nonrecovery." (*Robbins v. Alibrandi* (2005) 127 Cal.App.4th 438, 448.) A contingent fee is generally higher than a fee for the same legal services paid as they are performed to compensate for the loan of those services and risk of loss. (*Ketchum v. Moses* (2001) 24 Cal. 4th 1122, 1132.) "However, although taking a case on a contingent fee basis may support an award of a multiplier, it does not compel, it." (*Save Our Uniquely Rural Community Environment v. County of San Bernardino* (2015) 235 Cal. App. 4th 1179, 1188.) Here, the contingency risk was reduced due to the fee-shifting provision of the Song Beverly Act. Moreover, the contingency risk was accounted for in the billing rates. The request for multiplier is denied.

Litigation Costs and Expenses:

"Except as otherwise provided by statute, a prevailing party is entitled as a matter of right to recover costs in any action or proceeding." (CCP § 1032(b).) Generally, CCP § 1033.5 enumerates categories of costs that are allowable and items that are not allowable. The Song Beverly Act allows a prevailing buyer to recover costs and expenses which are reasonably incurred in connection with the commencement and prosecution of the action. (Civil Code §1794(d).) The additional term "expenses" was included in this section to cover items that would not otherwise be included in the detailed statutory definition of "costs" under CCP § 1033.5. (*Jensen v. BMW of North America* (1995) 35 Cal.App.4th 112, 137-138.)

"If the items on a verified cost bill appear proper charges, they are prima facie evidence that the costs, expenses and services therein listed were necessarily incurred. Where the items are properly objected to, they are put in issue, and the burden of proof is upon the party claiming them as costs." (*Levy v. Toyota Motor Sales, U.S.A., Inc.* (1992) 4 Cal.App.4th 807, 816.) The prevailing buyer bears the burden of showing that costs or expenses were (1) reasonably necessary to the conduct of litigation and (2) reasonable in amount. (*Ibid*.)

On April 8, 2026, Plaintiff filed the Memorandum of Costs seeking a total of $626.02. Defendant has not challenged any item of cost. None of the costs listed appear to be unreasonable. Accordingly, the **full amount is granted.**

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CASE #	CASE NAME	HEARING NAME
CVRI2506040	GALVAN VS SUN COMMUNITIES OPERATING LIMITED PARTNERSHIP	HEARING RE: VERIFIED PRO HAC VICE APPLICATION OF JOHN F. WYMER, III;

Tentative Ruling:

California Business and Professions Code §6125 provides that only active members of the California State Bar shall practice law in this state. California Rule of Court 9.40 allows state courts to give permission for out-of-state attorneys who are not licensed in California to appear on behalf of a party in a particular case as counsel *pro hac vice*. The court can only permit appearances that are made in association with an active California State Bar member who acts as the attorney of record for the party.

CRC 9.40 requires that an application to appear *pro hac vice* be made in writing and be verified. The application must state the applicant attorney's office and residence addresses; the courts to which the attorney has been admitted to practice and the dates of admission; that the attorney is a member in good standing in those courts; that the attorney is not currently suspended or disbarred in any court; the title of the court and cause in which the attorney has filed an application to appear *pro hac vice* in California within the preceding two years, the date of each application, and whether or not it was granted; and the name, address, and telephone number of the active member of the State Bar of California who is attorney of record. No person is eligible to appear as counsel *pro hac vice* if they are a resident of California; are regularly employed in California; or are regularly engaged in substantial business, professional, or other activities in California.

The Application to appear *pro hac vice* must be served on the San Francisco office of the State Bar of California, which must also be paid a fee not exceeding $50.00 to defray administration expenses. Absent special circumstances, repeated appearances by any attorney under the Rule is a cause for denial of an application (*Walter E. Heller Western, Inc. vs. Superior Court (County of Los Angeles)* (1980) 111 Cal. App. 3d 706, 710). While appearing *pro hac vice*, an out-of-state attorney submits to the jurisdiction of state courts regarding state laws governing attorney conduct to the same extent as a California State Bar member. A trial court's inherent powers include the authority to revoke an attorney's *pro hac vice* status when that attorney has engaged in conduct that would be sufficient to disqualify a California attorney (*Sheller vs. Superior Court of Los Angeles County* (2008) 158 Cal. App. 4th 1697, 1716).

All requirements of CRC 9.40 having been met, the request is granted. Proposed order submitted has been signed and ordered filed.